

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 30, 2026, AT 8:30 A.M.

Code of Civil Procedure section 473, subdivision (b) provides, in relevant part, The court may, upon any terms as may be just, relieve a party or the party's legal representative from a[n] . . . order . . . through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be . . . made within a reasonable time, in no case exceeding six months, after the . . . order . . . was taken.

(Code Civ. Proc., § 473, subd. (b).)

Defendant specifically contends setting aside the sanctions order is proper because its lead counsel was out on medical leave indefinitely from March 2026 onwards and thus any failure to oppose plaintiff's motion to withdraw from arbitration was due to mistake, inadvertence, surprise, or excusable neglect.

However, the court did not impose sanctions because defendant failed to oppose the motion. Rather, Code of Civil Procedure section 1281.97, subdivision (a) requires the court to impose a monetary sanction against any party that materially breaches the arbitration agreement. A material breach includes the failure to pay fees and costs of arbitration. (Code Civ. Proc., § 1281.97.) An exception to the imposition of monetary sanctions is if defendant's failure to pay the arbitration fees was the result of defendant's good faith mistake, inadvertence, or other excusable neglect. (*Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, 323.)

It does not appear that defendant's counsel's absence beginning in March 2026 was a good faith mistake, inadvertence, or excusable neglect that resulted in the nonpayment of arbitration fees in October and November 2025. Nor does counsel provide any facts suggesting the nonpayment was due to a good faith mistake, inadvertence, or excusable neglect.

Accordingly, defendant's motion is denied.

5. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

The demurrer is continued to **August 20, 2026, at 8:30 a.m. in Department 3.**

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